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File No: EXP202212477

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 24, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against B.B.B. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202212477

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 10/20/2022, a document was submitted to this Agency by A.A.A. (hereinafter, the complainant), in which a complaint is filed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for a possible breach of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

“Ms. B.B.B. has used my image and name in one of her reviews on her website without my permission, also deceiving others since I never gave that opinion nor hired her services. If you go to ***URL.1, you can see how I, A.A.A., appear in one of the reviews. That photo of mine was published on Instagram a few years ago, a photo that I deleted over time, which means that it has probably been on her website for a long time.”

Along with the notification, a screenshot of the website ***URL.1 is provided, showing the photograph of a woman, who would be the complainant, with the following text:

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“Fully committed to the training. I am very satisfied with the program. The exercises are very easy to understand, and if I have doubts, there are reference videos. I no longer have an excuse to train at home. A.A.A.”

SECOND: On 11/22/2022, this Agency accessed the website ***URL.1 and verified that, indeed, the review signed with the name of the complainant and the photograph were still published.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 11/23/2022, the complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 11/24/2022 as noted in the acknowledgment of receipt in the file.

No response has been received to this forwarding document.

FOURTH: On 01/20/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On 04/14/2023, an action was taken to incorporate a screenshot of the website ***URL.1 into the file, in which it is observed that the review subject to the complaint has not been removed.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary issues

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Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, alignment or combination, restriction, erasure, or destruction;"

In this case, pursuant to Article 4.1 of the GDPR, the physical image of a person is personal data. Thus, its inclusion on websites, forums, publications that identify or make a person identifiable constitutes processing of personal data.

III

Legality of the processing of personal data

The principles governing processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);
(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the lawful processing of personal data are listed in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

In this regard, Recital 40 of the GDPR states that "For processing to be lawful, personal data must be

processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation applies, including the necessity of compliance with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or for taking steps at the request of the data subject prior to entering into a contract.”

In the present case, it is noted that as of 14/04/2023, the review subject to the complaint remains published. The photograph clearly shows the person, and coupled with the fact that it is linked to the name and first surname of the complainant, it allows for clear identification of this individual. Consequently, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the processing of personal data carried out by the respondent regarding the complainant appearing in the images has been conducted without a legitimate basis as outlined in Article 6 of the GDPR.

IV

Classification of the infringement of Article 6.1 of the GDPR

If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could constitute the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher.”

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total annual global turnover of the previous financial year, opting for the highest amount:

a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9; (...)”

For the purposes of the statute of limitations, Article 72.1 “Very serious infringements” of the LOPDGDD states:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which constitute a substantial breach of the articles mentioned therein and, in particular, the following:

a) (...)

a) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met; (...)”

V

Sanction for the infringement of Article 6.1 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the authority to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i)-, or the authority to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, where appropriate, in a specified manner and within a specified timeframe - Article 58.2 d)-.

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In this case, taking into account the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters

a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.

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d) The possibility that the conduct of the affected party may have included the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

The balance of the circumstances considered allows for an initial assessment of a fine of €1,000 (one thousand euros) for the infringement of Article 21.4 of the GDPR.

VI

Adoption of provisional measures

Article 69 of the LOPDGDD states that:

“1. During the preliminary investigation proceedings or after initiating a procedure for the exercise of the sanctioning power, the Spanish Agency for Data Protection may reasonably agree on the

necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of the Regulation, the precautionary blocking of data, and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Agency for Data Protection considers that the continuation of the processing of personal data, its communication, or international transfer will result in a serious detriment to the right to data protection, it may order the responsible parties or processors to block the data and cease its processing, and in case of non-compliance with these mandates, proceed to immobilize it.

3. When a complaint has been submitted to the Spanish Agency for Data Protection referring, among other issues, to the lack of timely attention to the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, the Spanish Agency for Data Protection may agree at any time, even prior to the initiation of the procedure for the exercise of the sanctioning power, through a reasoned resolution and prior hearing of the data controller, the obligation to comply with the requested right, continuing the procedure regarding the other issues subject to the complaint.”

In the data processing analyzed, there is an undeniable absence of a legal basis for carrying it out currently, given that the complaining party has stated that they do not consent to the publication of their image linked to their name and surname, which results in a serious detriment to the rights of the complaining party. Thus, the suspension of processing is the only measure that can be adopted to safeguard the fundamental right to data protection, being, moreover, the least harmful, burdensome, and proportionate for the party being complained against.

Consequently, it is deemed necessary to impose, in addition to the administrative fine, the provisional measure of ordering the removal and blocking of the review subject to complaint that appears on the website ***URL.1, from the notification of this agreement to initiate the sanctioning procedure until its final resolution, in which this measure must be confirmed, modified, or lifted.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: To confirm the following provisional measures imposed on B.B.B.:

- Removal and blocking of the review subject to complaint from the website ***URL.1.

Within ten working days from the notification of this agreement to initiate the sanctioning procedure, justification must be provided to this Spanish Agency for Data Protection regarding compliance with this requirement.

THIRD: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complaining party and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the preliminary proceedings prior to the initiation of this sanctioning procedure.

FIFTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €1,000 (one thousand euros), without prejudice to what results from the instruction.

SIXTH: TO NOTIFY this agreement to B.B.B., with NIF ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide...

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with your NIF and the procedure number that appears in the heading of this document.

If you do not make allegations to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €800 (eight hundred euros), resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at [Insert the corresponding text for €800 (eight hundred euros)] and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €600 (six hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (€800 or €600), you must make it effective by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Inspection Subdirectorate to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file of actions will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On May 17, 2023, the respondent has proceeded to pay the sanction in the amount of €600 by utilizing the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

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2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of the procedure XXXXXXXX, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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